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Provision of June 20, 2024

Register of provisions

No. 380 of June 20, 2024

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to the Code regarding the protection of personal data, containing provisions for the
adaptation
of the national legal system to Regulation (EU)
2016/679 (Legislative Decree of June 30, 2003, No. 196, as
amended by Legislative Decree of August 10, 2018, No. 101, hereinafter "Code");

HAVING REGARD to the complaint lodged by Mr. XX on
April 6, 2022, pursuant to Article 77 of the Regulation, in which a violation of the rules
on the protection of personal data by TS Food Processing S.r.l. was alleged;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISE

1. The complaint against the Company and the initiation
of the investigative activity.

With the complaint submitted on April 6, 2022, and
regularized on June 13, 2022, Mr. XX represented to this Authority that he had submitted
a request to exercise his rights, pursuant to
Article 15 of the Regulation, against TS
Food Processing S.r.l. (hereinafter "the Company"), in
order to "access all files and data in any
form containing personal data related to the
employment relationship and stored on the personal computer
in his possession (...)".

The complainant stated that, in response to such
request, he received a denial from the Company
which communicated to him that it could not allow access
because "it could very well capture sensitive data of
the company previously known to him as an employee".
Therefore, with a note dated September 6, 2022, the Authority
initiated the preliminary investigation, inviting the
Company to provide observations regarding the
complaint and to comply with the requests of the complainant.
In the communication dated September 26, 2022, sent to
the complainant and the Authority, the Company observed that
"the request is formulated in an absolutely
generic manner and therefore cannot be fulfilled," asking

the applicant to specify in detail the folders and files he intended to access.

This was followed by an exchange of emails between the parties, in which, on one side, the applicant communicated the list of personal documents still in the possession of the Company (email of September 30, 2022) and requested to schedule a meeting to access the data (emails of January 2, 2023, and January 31, 2023) and, on the other side, the Company urged the communication of the folders to be retrieved and expressed its willingness to schedule an appointment in the presence of IT technicians who “validate the operations performed and draft a report in the interest of all parties involved” (email of January 19, 2023).

In a final communication sent to the Authority on February 23, 2023, the complainant informed that no communication had been received from the Company regarding the possibility of accessing his personal data.

2. The initiation of the procedure.

For the above reasons, the Office proceeded to notify the Company, with a note dated March 16, 2023, of the act initiating the procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 12, paragraph 3, and 15 of the Regulation.

The Company sent, on April 14, 2023, its defensive writings, pursuant to Article 18 of Law No. 689/1981, arguing that:

- the invitation to the applicant to precisely identify the files subject to the request cannot be interpreted as a denial, but is “a consent that aims to protect Mr. ...’s right to access his personal data (...) but also aims to protect the equally legitimate right of TS Food to safeguard itself from the copying and/or dissemination of data that, (...) may be used to divert clientele, gather information on business know-how, customer lists, estimates, etc. (...);

- despite the communications sent also to the Guarantor's Office, in which the complainant requested a meeting with the Company, in fact he “has never been able to even schedule a phone appointment with the Company to carry out the operations to which he had consented from the very beginning.”

Finally, in a note dated December 12, 2023, the complainant informed this Authority and, for information, the Company, that he had gained access to his own PC and consequently to all personal data (including files, electronic folders) contained therein and to the additional personal documentation in the possession of the Company.

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

As a result of the examination of the statements made to the Authority during the procedure as well as the documentation acquired, it appears that the Company, in its capacity as data controller, has carried out certain processing operations, related to the complainant, that are not compliant with the rules on the protection of personal data.

In this regard, it is highlighted that, unless the act constitutes a more serious crime, anyone who, in a proceeding before the Authority, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code "Falsehood in declarations to the Authority and interruption of the execution of the tasks or the exercise of the powers of the Authority."

On the merits, it has emerged that the Company did not respond to the request for the exercise of rights, submitted by the complainant pursuant to Article 15 of the Regulation, and that, only following the submission of the complaint and the opening of the investigation by the Authority, access to personal data and further information related to the employment relationship with the party was granted. The fulfillment thus occurred almost two years beyond the deadline set by the Regulation.

Regarding the conduct of the Company, it must be noted that it delayed, for a considerable period of time (approximately two years), the response to the request for the exercise of rights, justifying this behavior with various reasons. Initially, access to the personal data contained in the computer was denied for fear that corporate secrets could be compromised due to the unfair competition behaviors exhibited by the complainant during the employment relationship (see email dated 04/10/2021); instead, during the proceedings, this refusal was justified by the vagueness of the request itself and the consequent impossibility of correctly identifying the personal data to be provided (see email dated 26/09/2022); finally, in the defense writings, the Company highlighted the lack of cooperation from the complainant regarding the requested fulfillment (see note dated 14/04/2023).

The arguments put forth by the Company cannot, in any case, be positively evaluated for the purposes of a possible justification for the lack of response. In this regard, it should be noted that Article 15 of the Regulation, in regulating the right of access of the data subject, provides that the only limit is that it does not infringe upon the rights and freedoms of others (Article 15, paragraph 4, of the Regulation); an additional case of denial is provided for in Article 12, paragraph 5, of the Regulation when the requests of the data subject are "manifestly unfounded or excessive."

It is useful, however, to clarify that the restriction on the right of access provided for in Article 15, paragraph 4, of the Regulation also refers to "industrial and corporate secrecy and intellectual property." However, such considerations should not lead to a denial of providing the data subject with all the information, taking into account the amount of information concerning the data subject that is processed by the data controller (see Recital 63 of the Regulation). Rather, the data controller must balance the opposing rights, adopting appropriate measures capable of mitigating risks to the rights and freedoms of others, such as the deletion of excessive information that does not pertain to the data subject, in compliance with the principle of proportionality (see Guidelines on the right of access, adopted by the EDPB on 28/03/2023, paragraph 165 et seq.).

In this case, given the request made by the complainant and referring to data "related to previous employment relationships, personal and family photographs, personal email" (as contained in the company computer) and more specifically identified in the note attached to the email dated 30/09/2022, it is believed that the Company's denial cannot fall within the restriction referred to in Article 15, paragraph 4, mentioned above.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow for the closure of the present procedure, as none of the cases provided for in Article 11 of the Authority's Regulation No. 1/2019 apply.

The processing carried out by the company, with reference to the failure to respond to the access request submitted by the complainant, is indeed unlawful, as outlined above, in relation to Articles 12, paragraph 3, and 15 of the Regulation.

Therefore, in light of the corrective powers attributed by Article 58, paragraph 2, of the Regulation, an administrative monetary sanction is imposed pursuant to Article 83 of the Regulation, commensurate with the circumstances of the specific case (Article 58, paragraph 2, letter i) of the Regulation).

5. Adoption of the injunction order for the application of the administrative monetary sanction and ancillary sanctions (Articles 58, paragraph 2, letter i), and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for in Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981).

The violation, ascertained in the terms outlined in the reasoning, cannot be considered "minor," taking into account the nature, severity, and duration of the violation itself, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the purposes of applying the administrative monetary sanction and the...

****Regarding Quantification****, taking into account that the sanction must "in any case [be] effective, proportionate and dissuasive" (Article 83, paragraph 1 of the Regulation), it is represented that, in the specific case, the following circumstances have been considered:

- In relation to the nature, severity, and duration of the violation, the nature of the violation concerning the exercise of the rights of the data subject and the considerable delay in responding to the request of the complainant have been deemed relevant;
- With reference to the culpable or intentional nature of the violation and the degree of responsibility of the data controller, account has been taken of the conduct of the Company, which only complied with the indications provided during the proceedings after several reminders.

It is also considered that the economic conditions of the offender, determined based on the revenues achieved by the Company concerning the ordinary financial statements for the year 2022, are relevant in this case, taking into account the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation). Lastly, account is taken of the amount of sanctions imposed in similar cases.

In light of the above elements and the assessments made, it is deemed appropriate, in this specific case, to apply to TS Food Processing s.r.l. an administrative sanction of payment of an amount equal to €10,000.00 (ten thousand).

In this context, it is also considered, in light of the type of violations identified that concerned the exercise of the rights of the data subject, that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website should proceed.

It is also considered that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR****

notes the unlawfulness of the processing carried out by TS Food Processing s.r.l., represented by its legal representative pro tempore, with registered office in Parma, via Benjamin Franklin No. 31, VAT No. 09104390969, pursuant to Article 143 of the Code, for the violation of Articles 12, paragraph 3, and 15 of the Regulation;

****ORDERS****

pursuant to Article 58, paragraph 2, letter i), of the Regulation, TS Food Processing s.r.l. to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

****COMMANDS****

therefore the same Company to pay the aforementioned sum of €10,000.00 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is reminded that the offender retains the right to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of 1.9.2011 provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code);

****DISPOSES****

the publication of this provision on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, June 20, 2024

****THE PRESIDENT****

Stanzione

****THE REPORTER****

Cerrina Feroni

****THE SECRETARY GENERAL****

Mattei